

Line 7

Case Name: *Gerber J. Flores Marquez v. All Fab Precision Sheetmetal Inc., et al.*

Case No.: 23CV411306

SUPERIOR COURT OF CALIFORNIA

COUNTY OF SANTA CLARA

Plaintiff Gerber J. Flores Marquez (“Plaintiff”) moves to compel Defendant Ho Enterprises, LLC (“Ho Enterprises”) to serve further responses to Plaintiff’s Form Interrogatories, Set One (“FROGs”) served on April 23, 2026, and for sanctions against Defendant Ho Enterprises (“Defendant”) and its attorney Ted Broomfield, jointly and severally, in the amount of \$5,260.00 under Code of Civil Procedure Sections 2023.010(d),(e),(f),(i), 2023.030(a) *et seq.*, and 2030.300(d) for Plaintiff’s reasonable attorney’s fees and costs incurred for this Motion. Pl.’s Amended Notice of Motion (the “Motion”) at 2:7-18 (filed: July 17, 2026).

Defendant opposes the Motion and requests in its Opposition papers that the Court either continue the hearing until no earlier than February 22, 2027, or deny the motion and award Defendant \$4,710.12 in sanctions against Plaintiff and his attorney.

The Motion came on for hearing on August 19, 2026, at 9:00 AM in Department 16. After reviewing all the papers and the record, and giving counsel for all parties the full and fair opportunity to be heard, the Court finds and rules as follows. The Court **GRANTS** Plaintiff’s Motion to compel further responses to the Form Interrogatories in full, **ORDERS** Ho Enterprises to serve verified code-compliant further responses to the Form Interrogatories within thirty days of today, **AWARDS** Plaintiff reduced monetary sanctions in the amount of **\$2,750.00** jointly and severally against Ho Enterprises and its counsel Broomfield, and **DENIES** Defendant’s request for continuance and sanctions.

I. Procedural History and Factual Background

Plaintiff filed this action on February 7, 2023, arising out of a workplace injury involving a work press machine that amputated two of Plaintiff’s fingers. All Fab Precision Sheetmetal (AFPS) is Plaintiff’s employer and owner of the work press machine that amputated Plaintiff’s fingers. AFPS is sued under the work press exception to the workers’ compensation exclusivity rule.

The operative pleading now is Plaintiff’s First Amended Complaint (“FAC”). The Court granted Plaintiff leave to file the FAC by minute order dated January 30, 2026, adopting the tentative ruling of Hon. Vincent I. Parrett. The original Complaint was originally filed on February 7, 2023; Plaintiff filed the FAC on February 2, 2026. The FAC expanded Plaintiff’s theories of liability to negligence and premises liability as applied to

Defendants as landlord and shareholders of the employer, All Fab Precision Sheet Metal, Inc.

Defendants Kelley Ho and Son Ho own Defendant Ho Enterprises, LLC (Ho Enterprises). Ho Enterprises also owns the building that AFPS uses to run its business. Plaintiff characterizes Ho Enterprises as the landlord and tenant, as well as the owner of the business (AFPS) and the subject work press.

On April 23, 2026, Plaintiff electronically served Plaintiff's Form Interrogatories—General to Defendant Ho Enterprises, LLC. On May 19, 2026, defense counsel requested an additional extension to June 18, 2026, which Plaintiff's counsel granted. On June 18, 2026, counsel for defendant electronically served what purports to be Responses to Plaintiff's Form Interrogatories—General to Defendant Ho Enterprises LLC. Having reviewed these responses carefully, the Court finds that Defendant's responses consist entirely of boilerplate objections. No substantive information was provided in response to any interrogatory.

The responses asserted that discovery is Premature – Demurrer is calendared, and these responses are thereby Harassing and Oppressive and are Unduly Burdensome until the demurrer is disposed of; Harassing & oppressive, asked solely to intimidate; Relevance, not reasonably calculated to lead to admissible evidence; Invades Privacy Privilege, RESPONDING PARTY'S contact information is protected private data under the California Constitution, as well as statutes, regulations, and cases that interpret the same; and Misuse of discovery in attempt to force settlement, evidenced through service two and a half hours after seeking default and Plaintiff's email stating Defendant should be insured and insurance appointed counsel should represent Defendant. The responses expressly stated that if an answer were filed, defendants would respond substantively.

The Demurrer is calendared for January 6, 2027, which was the earliest date available. No answer has been filed. The demurrer seeks dismissal without leave to amend on the ground that defendants are not proper parties.

II. Analysis of the Motion

A. This Motion to Compel is timely filed.

Under Code of Civil Procedure section 2030.300(c), a motion to compel further interrogatory responses must be filed within 45 days of service of the verified response, or any supplemental response, or on or before any specific later date to which the parties have agreed in writing. § 2030.300(c) *id.* § 2030.300(b)(1). Failure to file within this period renders the court without jurisdiction to compel further responses. (*Id.* § 2030.300(c).)

When responses are electronically served, Code of Civil Procedure section 1010.6(a)(4) extends by two court days any right or duty to do an act within a period prescribed by statute after service by electronic means. (C.C.P. § 1010.6(a)(3)(B).) This provision applies to a filing deadline that runs after electronic service of the triggering

document. (C.C.P. § 1010.6(a)(3)(C).)

Under Code of Civil Procedure section 2030.250(a), interrogatory responses ordinarily must be signed under oath unless the response contains only objections. (§ 2030.250.) The reasoning of *Golf & Tennis Pro Shop, Inc. v. Superior Court* (2022) 84 Cal. App.5th 127 strongly suggests that objections-only responses most likely start the 45-day clock upon service, because otherwise the timing requirement could vanish entirely for that category of response, contrary to the statute's prompt-resolution function. (*Golf & Tennis Pro Shop v. Super. Ct.* (2022) 84 Cal.App.5th 127.)

Here, the Form Interrogatories were electronically served on April 23, 2026. Defense counsel obtained an extension to June 18, 2026. Ho Enterprises electronically served its responses on June 18, 2026. The responses consisted entirely of objections with no substantive answers. Under section 2030.250(a), objections-only responses do not require verification. (§ 2030.250.)

Counting 45 calendar days from June 18, 2026, yields August 2, 2026. Because responses were served electronically, the two-court-day extension under section 1010.6(a)(4) applies, extending the deadline to August 5, 2026. (§ 1010.6(a)(3)(B).) The amended motion was filed on July 17, 2026, at 3:12 PM, p:2c59eb8a which is 29 calendar days after June 18, 2026. Accordingly, the Court rules that the Motion was timely. Even without applying the two-court-day electronic-service extension, July 17 falls well before the August 2 deadline.

The parties' written extension concerned only the deadline to serve responses, not the deadline to move. Any extension of the motion deadline must itself be specifically agreed to in writing. (*Sexton v. Superior Court of Los Angeles Cnty.* (1997) 58 Cal.App.4th 1403, 1406; *Lincolnshire Condominium, Ltd. v. Superior Court* (1984) 158 Cal.App.3d 524, 526.) No such extension appears in the record.

The pending demurrer and absence of an answer do not alter the jurisdictional deadline. (Code Civ. Proc., § 2030.290.) Where a timely response has been served, the proper vehicle is a motion to compel further responses under section 2030.300, not a motion for initial responses under section 2030.290, even if the served response consists only of objections. (*Sinaiko Healthcare Consulting, Inc. v. Pac. Healthcare Consultants* (2007) 148 Cal.App.4th 390.)

As the Motion is timely, the Court will now proceed to resolve in on its merits.

B. While Plaintiff's meet-and-confer efforts were deficient, the Court will still resolve the Motion on its merits, and will consider this deficiency as relevant to the amount of sanctions reasonably awarded under these circumstances.

A motion to compel further interrogatory responses must be accompanied by a meet-and-confer declaration under Code of Civil Procedure section 2016.040 showing a reasonable and good-faith attempt to resolve informally each issue presented by the

motion. (§ 2016.040(a); § 2030.300(b)(1).) This requirement is substantive, not ceremonial; the parties must present their positions with candor, specificity, and support so that each side can assess the merits before court intervention. (*Townsend v. Superior Court* (1998) 61 Cal.App.4th 1431.) Mere argument, bickering, or ultimatum-style demands do not satisfy the statutory standard. (*Townsend v. Superior Court* (1998) 61 Cal.App.4th 1431.)

If the meet-and-confer showing is deficient, denial is not automatic in every case; the Court has discretion to deny, continue, or reach the merits depending on the procedural deficiency and the actual posture of the dispute. (*Golf & Tennis Pro Shop v. Super. Ct.* (2022) 84 Cal.App.5th 127.)

Plaintiff's pre-Motion meet and confer efforts were deficient. Plaintiff sent exactly two meet-and-confer emails pertaining to this discovery dispute. Plaintiff sent the first seventeen minutes after receiving the responses and the second thirty-five minutes after receiving the responses. Neither email identified a single interrogatory, a single objection, or a single defect. Neither email sought informal resolution without court intervention. The second email threatened a motion and sanctions if Plaintiff did not get what he wanted within one week. No telephonic conference, video conference, or in-person meeting occurred on this dispute and Plaintiff never requested one.

By the standards articulated in *Townsend v. Superior Court* (1998) 61 Cal.App.4th 1431 *Townsend v. Superior Court* (1998) 61 Cal.App.4th 1431; *Clement v. Alegre* (2009) 177 Cal.App.4th 1277; Plaintiff's two near-instantaneous, non-specific emails constitute a shoddy meet-and-confer effort. The emails were too immediate, too general, and too ultimatum-like. Plaintiff did not identify any specific interrogatory or explain any deficiency with the particularity needed to enable informal resolution.

Defense counsel responded, expressed a desire to avoid motion practice, and suggested that a supplemental interrogatory if demurrer were overruled and after defendant answered would resolve the dispute. On July 24, 2026, after Plaintiff filed the motions, defense counsel emailed Plaintiff's attorney offering to stipulate in writing that defendants would serve substantive responses to the already-served written discovery within thirty days after defendants file an answer, if the January 6, 2027 demurrer is overruled or leave to amend is granted and defendants elect to answer. Plaintiff never responded to the July 24, 2026 email.

Yet this procedural deficiency should not defeat the Motion on its merits. The dispute is fully joined, the legal issues are sharply presented, and Defendant served no substantive information at all in response to any Form Interrogatory. The central dispute is straightforward—whether a pending demurrer postpones the duty to respond to interrogatories under California law—and that legal issue would not be resolved by further email exchanges or phone calls.

Defendant's fixed position that Code-Compliant responses to the Form Interrogatories would come only after demurrer and answer was not responsive to any effort by Plaintiff to engage on the merits of particular objections. Both of Defendant's

proposals merely repackaged the same *legally-impermissible* refusal to respond to this discovery now pending demurrer. Further conferral would likely have been futile procedural delay.

Exercising its broad discretion, the Court rules that the better course is to reach the merits notwithstanding the deficient meet and confer by Plaintiff, and to treat this deficiency by Plaintiff as relevant to whether the Court should reduce the *amount* of reasonable sanctions awarded under these circumstances, rather than as a basis to deny the Motion. (*Golf & Tennis Pro Shop v. Super. Ct.* (2022) 84 Cal.App.5th 127.)

C. Legal Standards for Motion

Under Code of Civil Procedure section 2030.300(a), a propounding party may move for an order compelling a further response to interrogatories if the responding party's answer is evasive or incomplete, an exercise of the option to produce documents is unwarranted or inadequate, or an objection is without merit or too general. (C.C.P. § 2030.300(a)(1) & (3)).

The responding party bears the burden of justifying any objection or incomplete answer. (*Williams v. Superior Court of L. A. Cnty.* (2017) 3 Cal.5th 531; *Williams v. Superior Court of L. A. Cnty.* (Cal. 2017) 398 P.3d 69.) The propounding party is presumptively entitled to Code-Compliant answers, and the burden of justifying any objection and failure to respond remains at all times with the resisting party. (*Williams v. Superior Court of L. A. Cnty.* (2017) 3 Cal.5th 531.) The Supreme Court in *Coy v. Superior Court* (1962) 58 Cal.2d 210, instructed that this burden is request specific; objections applied uniformly without particularized support are insufficient. (*Coy v. Superior Court* (Cal. 1962) *id.*, 23 Cal. Rptr. 393.) Boilerplate objection-only responses are legally inadequate. (*Masimo Corp. v. Vanderpool Law Firm, Inc.* (2024) 101 Cal.App.5th 902.)

Under Code of Civil Procedure section 2017.010, discovery is available unless otherwise limited by court order. (§ 2017.010; *Williams v. Superior Court of L. A. Cnty.* (2017) 3 Cal.5th 531.) California discovery rights are broad, and disclosure is a matter of right unless clearly prohibited by statute or public policy. (*Williams v. Superior Court of L. A. Cnty.* (2017) 3 Cal.5th 531.) Pleading deficiencies generally do not defeat discovery rights; the discovery question is not resolved by predicting whether a demurrer will succeed. (*Williams v. Superior Court of L. A. Cnty.* (2017) 3 Cal.5th 531.) A pending demurrer is *not* a legally cognizable basis to withhold discovery responses. (*Williams v. Superior Court of L. A. Cnty.* (Cal. 2017) 398 P.3d 69.) Courts may not impose extra-statutory proof-of-merits or pleading-merits preconditions on discovery. (*Williams v. Superior Court of L. A. Cnty.* (Cal. 2017) 398 P.3d 69.)

Where a party invokes burden or proportionality under Code of Civil Procedure section 2017.020, it must present evidence of the quantum of work required to answer the particular requests; generalized, speculative, or case-wide assertions do not suffice. (§ 2017.020; *Williams v. Superior Court of L. A. Cnty.* (Cal. 2017) 398 P.3d 69.) A party seeking to limit or defer interrogatory discovery on burden grounds should proceed by noticed motion for protective order under Code of Civil Procedure section 2030.090, with

the burden on that party to show unreasonable burden; unilateral blanket objections in the responses are not an adequate substitute. § 2030.090(a) *id.* § 2030.090; *Sinaiko Healthcare Consulting, Inc. v. Pac. Healthcare Consultants* (2007) 148 Cal.App.4th 390. Because these are Judicial Council form interrogatories, blanket vagueness, overbreadth, and burden objections are especially disfavored; form interrogatories were designed to avoid wording disputes, and resistance requires particularized justification. (*Clement v. Alegre* (2009) 177 Cal.App.4th 1277.) Form interrogatories are Judicial Council-approved and presumptively proper. (Code Civ. Proc., § 2033.710; *Clement v. Alegre* (2009) 177 Cal.App.4th 1277.)

D. Defendant's Objection that Discovery Responses are Premature because a Demurrer was filed is Frivolous and Overruled.

Defendant asserts that responses are Premature because a Demurrer is calendared, and these responses are thereby Harassing and Oppressive and are Unduly Burdensome until the Demurrer is disposed of. That is nonsense under California law.

A pending demurrer does not authorize withholding interrogatory answers. (*Williams v. Superior Court of L. A. Cnty.* (Cal. 2017) 398 P.3d 69.) The burden of justifying objections and failures to respond remains with the resisting party, and discovery may not be conditioned on prior resolution of pleading attacks absent statutory authority. (*Id.*) Under section 2017.010, discovery is available unless otherwise limited by court order. (§ 2017.010; *Williams v. Superior Court of L. A. Cnty.* (2017) 3 Cal.5th 531.) In this case, a demurrer is calendared for hearing on January 6, 2027, but a scheduled demurrer hearing is not a court order staying discovery. And Ho Enterprises has obtained no court order staying written discovery.

Pleading-stage disputes raised by demurrer do not suspend discovery obligations, and the existence of a pending demurrer or absence of an answer does not alter the jurisdictional deadline imposed by Section 2030.300(c). (C.C.P. § 2030.290.) Courts may not impose extra-statutory proof-of-merits or pleading-merits preconditions on discovery. (*Williams v. Superior Court of L. A. Cnty.* (Cal. 2017) 398 P.3d 69.). Hence, Defendant's demurrer-based objection provides no justification whatever for Defendant without all substantive responses to these Form Interrogatories.

A responding party cannot convert a legally nonexistent demurrer stay into a valid interrogatory response by promising to answer later if it loses the demurrer. Discovery responses must be Code-Compliant when due under the Discovery Act. Here, Defendant's responses that provided no substantive responses at all were not even close to Code-Compliant. And Defendant's conditional promise to respond only after demurrer and answer is not a Code-Compliant response.

Accordingly, Defendant's reliance on the pending demurrer to justify withholding all substantive responses is frivolous—and Defendant's objection on this ground is **OVERRULED.**

E. Defendant's Burden, Relevance, and Harassing Objections are Unfounded and Overruled.

Defendant asserts that the interrogatories are harassing & oppressive, asked solely to intimidate and not reasonably calculated to lead to admissible evidence. Defense counsel declared that the responses objected on grounds that the requests were premature and disproportionately burdensome until the demurrer is disposed of, because defendant may not even be a proper party and responding to discovery is not only time-consuming but expensive, with an estimated cost in excess of five thousand dollars.

But Defendant's showing as to burden is conclusory and unsupported by evidence. The record provides only a generalized cost assertion without particularized explanation of burden by interrogatory or category of information. Such conclusory excuses are insufficient. (*Deck v. Developers Inv. Co., Inc.* (2023) 89 Cal.App.5th 808.) Where a party invokes burden or proportionality under section 2017.020, it must present evidence of the quantum of work required to answer the particular requests; generalized, speculative, or case-wide assertions do not suffice. (§ 2017.020; *Williams v. Superior Court of L. A. Cnty.* (Cal. 2017) 398 P.3d 69.) The cost estimate says nothing about what work would be required to answer FROG 1.1 or the entity-information interrogatories (FROGs 3.1–3.7), what files would need review, what personnel time would be consumed, or why basic business information cannot be supplied now.

FROG 1.1 seeks the name, address, telephone number, and relationship to you of each person who prepared or assisted in the preparation of the responses to these interrogatories. FROGs 3.1 through 3.7 seek basic entity-identification information such as LLC information including name in articles of organization, other names used, date and place of filing, address of principal place of business, and California qualification. Those topics fall comfortably within the broad scope of permissible party discovery and should be readily available. (C.C.P. § 2017.010.) Defendant's generalized assertion that discovery is expensive does not establish that these particular interrogatories impose unreasonable burden.

Moreover, Defendant did not seek protective relief through the proper procedural vehicle. A party seeking to limit or defer interrogatory discovery on burden grounds should proceed by noticed motion for protective order under section 2030.090; unilateral blanket objections in the responses are not an adequate substitute. C.C.P. § 2030.090(a); *Sinaiko Healthcare Consulting, Inc. v. Pac. Healthcare Consultants* (2007) 148 Cal.App.4th 390.

FROG 1.1's request for the identity and relationship of persons who prepared responses is directly relevant to evaluating the reliability and completeness of the responses themselves. FROGs 3.1–3.7 seek basic organizational information about Ho Enterprises, which is directly relevant to Plaintiff's premises-liability and general-negligence claims against the Ho defendants as alleged landlords and business owners. These topics are clearly reasonably calculated to lead to admissible evidence within the broad discovery standard. (§ 2017.010.) They are not harassing, intimidating, or irrelevant on any reasonable view.

Accordingly, in the exercise of its discretion, the Court rules that Defendant's burden, relevance, and harassment objections are unfounded and **OVERRULED**.

F. Defendant's Boilerplate Objection is Frivolous and Overruled.

Here, no substantive information was provided by Defendant in response to any Form Interrogatory. Rather, Defendant provided the same five-part objection package across all interrogatories. This is precisely the type of *boilerplate* objection condemned in *Korea Data Sys. Co. v. Superior Court* (1997) 51 Cal.App.4th 1513. (*Coy v. Superior Court* (Cal. 1962) 23 Cal.Rptr. 393.) The fact that Defendant references case-level facts—the demurrer date, the alleged timing of service, Plaintiff counsel's May 14 email—does not make the objections request specific. A single factual narrative pasted into every interrogatory response without interrogatory-specific explanation is still boilerplate when untailored to the subject matter of each request.

Under *Coy*, the responding party's burden is request-specific; objections applied uniformly without particularized support are insufficient. (*Coy v. Superior Court* (Cal. 1962) 23 Cal.Rptr. 393.) Boilerplate objection-only responses are legally inadequate. (*Masimo Corp. v. Vanderpool Law Firm, Inc.* (2024) 101 Cal.App.5th 902.) The objections are especially disfavored here because these discovery requests are Judicial Council Form Interrogatories—as straightforward as discovery requests get—which were designed precisely to minimize wording disputes and reduce the need for objections on grounds of vagueness or ambiguity. (*Clement v. Alegre* (2009) 177 Cal.App.4th 1277.) Blank resistance to form interrogatories requires particularized justification, which Defendant has not provided. (§ 2033.710; *Clement v. Alegre* (2009) 177 Cal.App.4th 1277.)

Accordingly, the Court finds that Defendant's boilerplate objection package is frivolous and **OVERRULED**.

G. Defendant's misuse-of-discovery and settlement-pressure objections do not justify Defendant failing to provide Code-Compliant discovery responses—and are OVERRULED.

Defendant invokes misuse of discovery in attempt to force settlement, evidenced through service two and a half hours after seeking default and Plaintiff's email stating Defendant should be insured and insurance appointed counsel should represent Defendant. The record does contain mixed facts on this issue. On May 14, 2026, Plaintiff's attorney stated that the claim should have been submitted to the Ho defendants' insurance carrier, which would provide defense counsel, and that the Ho defendants should not be paying your bills to begin with. But the same email included statements supporting a legitimate evidence-gathering purpose.

Taking all this into account, the Court rules that even if Plaintiff applied settlement-pressure that does *not* independently justify Defendant withholding proper Code-Compliant responses to Form Interrogatories served by Plaintiff. In other words, Defendant's misuse and settlement-pressure objections do not justify Defendant's blanket

objections and failure to provide Code-Compliant responses—and are **OVERRULED**.

H. Defendant’s request to continue the hearing on this Motion to Compel further discovery responses is DENIED.

Defendant asks the Court either to continue the hearing on this Motion until no earlier than February 22, 2027, or to deny the Motion. But this continuance request is unsupported by any specific statute authorizing continuance of a motion to compel further responses merely because a demurrer is set months away. Deferring this motion to February 22, 2027, as Defendant requests, would create over eight months of discovery paralysis. No court order staying discovery exists. Accordingly, the Court DENIES Defendant’s request for a continuance of this Motion.

I. The Court GRANTS the Motion to Compel Further Responses to FROGS 1.1. and 3.1-3.7.

As to FROGS 1.1 and 3.1–3.7, the Motion is **GRANTED**. Defendant’s Objections to them—based, *inter alia*, on pending demurrer, generalized burden, harassment, irrelevance, and settlement-pressure misuse—have all been OVERRULED above. Defendant has an affirmative obligation to provide Code-Compliant responses to them, and no ground whatever not to. Defendants’ objections here lack legal foundation and factual support, are applied uniformly without interrogatory-specific justification, and are especially disfavored as applied to Judicial Council form interrogatories requesting basic party and business-entity information.

Accordingly, the Motion is **GRANTED** Defendant is **ORDERED** to provide Code-Compliant responses to FROGS 1.1 and 3.1-3.7 within 30 days of today.

J. The Court GRANTS the Motion to Compel Further Responses to FROGS Nos. 4.1 and 17.1.

FROG 4.1 asks: At the time of the INCIDENT, was there in effect any policy of insurance through which you were or might be insured in any manner (for example, primary, pro-rata, or excess liability coverage or medical expense coverage) for the damages, claims, or actions that have arisen out of the INCIDENT? The interrogatory seeks identification of insurer identity, policy type, policy limits, name of insured, policy number, insurer address, policy period, and any dispute over coverage.

Defendant contends FROG 4.1 is ambiguous as to incident, policy and other terms that are not properly defined. However, FROG 4.1 is a Judicial Council form interrogatory with defined terms. INCIDENT is a capitalized built-in form term, and the DISC-001 scheme treats capitalized terms as defined terms. (C.C.P. § 2030.060(d).) Defendant has not identified any specific defect in the form definition itself; the objection is only that the term is undefined. A bare vagueness objection to a capitalized defined term is not tenable where the approved form supplies the operative definition. Discovery objections lacking legal merit, including contrived vagueness objections, are misuse of the discovery process. (*Clement v. Alegre* (2009) 177 Cal.App.4th 1277.)

Nor does Defendant explain how policy is ambiguous in this context, where the interrogatory itself narrows the inquiry to insurance through which Defendant was or might be insured for claims arising out of the incident. The vagueness objection should be overruled.

Defendant also asserts a privacy objection. However, insurance information is expressly discoverable under Code of Civil Procedure section 2017.210. Defendant's showing is conclusory. It identifies no concrete serious invasion from disclosing the existence and basic terms of liability coverage responsive to a statutory insurance interrogatory, and no fact-specific explanation of why the requested information creates more than an ordinary privacy concern.

Accordingly, the Motion is **GRANTED** Defendant is **ORDERED** to provide Code-Compliant responses to FROG 4.1 within 30 days of today.

FROG 17.1 asks: Is your response to each request for admission served with these interrogatories an unqualified admission? For each non-admission response, the interrogatory requires: (a) the number of the request; (b) all facts upon which the response is based; (c) names, addresses, and telephone numbers of all persons with knowledge of those facts; and (d) identification of all documents and tangible things supporting the response.

Defendant's position is that FROG 17.1 is an improper shotgun interrogatory because the interrogatory requires the responding party to reference other responses and is not full and complete unto itself.

That objection is not legally available against an officially approved Judicial Council form. Code of Civil Procedure section 2030.060(d) contains the carve-out for approved forms by its own terms. (C.C.P. § 2030.060(d).) The most direct authority, *Clement*, treats the same sort of cross-reference objection to an approved form as inapposite and frivolous. (*Clement v. Alegre* (2009) 177 Cal.App.4th 1277.) *West Pico* does not alter that conclusion. Its admonition that this type of interrogatory should be avoided arose in 1961, long before the modern form-interrogatory approval regime, and addressed specially drafted interrogatories in a different statutory environment. Under the current scheme, FROG 17.1's cross-reference structure has been affirmatively sanctioned through Judicial Council approval, so *West Pico* has no operative force against it in this context. (*Sinaiko Healthcare Consulting, Inc. v. Pac. Healthcare Consultants* (2007) 148 Cal.App.4th 390.)

FROG 17.1 is a Judicial Council-approved form interrogatory designed specifically to ask for facts, witnesses, and documents supporting denials to requests for admission. It is a standard interrogatory used in modern practice after RFAs have been served. Defendant's citation to *West Pico*, a 1961 decision predating the modern Judicial Council form interrogatories, does not support invalidating a currently approved form interrogatory. The Court rejects Defendant's shotgun objection on the merits.

Accordingly, the Motion is **GRANTED** Defendant is **ORDERED** to provide Code-

Compliant responses to FROG 17.1 within 30 days of today.

K. Defendant's Privacy & Privilege Objections are Overruled.

When an interrogatory objection is based on privilege, the specific ground must be clearly stated in the response. (Code Civ. Proc., § 2030.240, subd. (b).) Code of Civil Procedure section 2030.240(b) requires that the specific ground for a privilege or work-product objection be clearly set forth in the response. (*Coy v. Superior Court* (Cal. 1962) 23 Cal.Rptr. 393.) The objecting party bears the burden of showing that the withheld information falls within the asserted privilege and, once a motion to compel is filed, must justify the objection with an adequate factual showing. (*Best Prods., Inc. v. Superior Court* (2004) 119 Cal.App.4th 1181.) If the resisting party offers no supporting evidence, it has not carried that burden. (*Id.*) A bare invocation of privacy or privilege without supporting factual information or a privilege log is insufficient. (*Coy v. Superior Court* (Cal. 1962) 23 Cal.Rptr. 393.)

Constitutional privacy and evidentiary privilege are distinct doctrines. (*Williams v. Superior Court of L. A. Cnty.* (2017) 3 Cal.5th 531.) If constitutional privacy is invoked, the resisting party must first establish a legally protected privacy interest, a reasonable expectation of privacy, and a serious invasion before any balancing occurs. (*Id.*; *Williams v. Superior Court of L. A. Cnty.* (2017) 3 Cal.5th 531.)

The privacy interest in contact-information discovery belongs to natural persons, not to an LLC as such. (*Williams v. Superior Court of L. A. Cnty.* (Cal. 2017) 398 P.3d 69.) Even where business entities have some privacy zone, it is not constitutionally protected in the same manner as an individual's Article I, Section 1 interest. (*SCC Acquisitions v. Super. Ct.* (Cal. Ct. App. 2016) (unpublished).)

Contact information is on the lower-sensitivity end of the privacy spectrum, so total nonresponse is ordinarily not justified where narrower means can address any legitimate concern. (*Tien v. Superior Court* (2006) 139 Cal.App.4th 528, 532.) If only part of an interrogatory is objectionable, the remainder must be answered. (§ 2030.240(a).)

In this case, Defendant's assertion of a privacy and privilege objection across the full set of FROGs is fundamentally defective. The objection as phrased states: Invades Privacy Privilege, RESPONDING PARTY'S contact information is protected private data under the California Constitution, as well as statutes, regulations, and cases that interpret the same. But that conflates constitutional privacy with evidentiary privilege—they are not the same thing and the response never identifies which lane actually applies to any interrogatory. (*Williams v. Superior Court of L. A. Cnty.* (2017) 3 Cal.5th 531.) The privacy/privilege objection was asserted as part of a uniform objection block applied to every interrogatory without differentiation.

Under Code of Civil Procedure section 2030.240(b), that lack of identification and particularity is insufficient on its face. (C.C.P. § 2030.240(b).) Section 2030.240(b) requires that the specific ground for a privilege or work-product objection be clearly set

forth in the response. (*Coy v. Superior Court* (Cal. 1962) 23 Cal.Rptr. 393.) A bare invocation of privacy or privilege without supporting factual information or adequate explanation is insufficient. (*Id.*)

Here, Defendant's objection is not interrogatory specific. It does not explain which particular interrogatories implicate contact information or why any asserted privacy interest outweighs Plaintiff's discovery rights. The objection provides no factual basis for the privacy claim. It does not explain what entity or individual privacy is being protected, whether the information is already public, whether Defendant is an LLC (a business entity) or an individual, or whether less intrusive alternatives such as redaction or a protective order would address any legitimate concern.

While Defendant's Opposition recites the *Hill/Williams* balancing framework in abstract terms, Defendant provides no factual showing of a specific legally protected privacy interest, no identification of which interrogatory subparts implicate contact data versus other information, no discussion of a protective order or partial response, no privilege log, and no identification of any specific evidentiary privilege beyond the constitutional privacy invocation.

Under the burden-allocation rules, that silence is legally consequential. Defendant was required to justify the objection; the court should not supply a missing privacy showing or invent a privilege theory for it. (*Williams v. Superior Court of L. A. Cnty.* (2017) 3 Cal.5th 531; *Best Prods., Inc. v. Superior Court* (2004) 119 Cal.App.4th 1181.) If the resisting party offers no supporting evidence, it has not carried that burden. (*Best Prods., Inc. v. Superior Court* (2004) 119 Cal.App.4th 1181.)

As to whose privacy is being asserted: the responses were served by Ho Enterprises, LLC, and the disputed language claims protection for RESPONDING PARTY'S contact information. If the objection is asserted on behalf of the LLC itself, it fails at the outset because the Article I, Section 1 framework protects natural-person privacy interests, not an LLC's own business identity or contact information. (*Williams v. Superior Court of L. A. Cnty.* (Cal. 2017) 398 P.3d 69; *SCC Acquisitions v. Super. Ct.* (Cal. Ct. App. 2016) (unpublished).)

As to FROG 1.1: The interrogatory seeks the name, ADDRESS, telephone number, and relationship to you of each PERSON who prepared or assisted in the preparation of the responses to these interrogatories. Defendant's Separate Statement 4:24-28. The only potentially privacy-implicating pieces are addresses and telephone numbers of natural persons. Even there, Defendant does not identify whether the preparers were attorneys, staff, members, employees, or other persons, does not identify any privilege theory as to their identities, and does not explain why a partial response could not provide names and relationships while withholding personal contact details subject to a protective order if warranted.

Defendant may not withhold disclosure of the identity of the persons who prepared the responses or their relationship to the party, nor may it withhold all substantive information. While Defendant may have a privacy concern regarding personal addresses

or personal telephone numbers of individuals, Defendant cannot withhold the names and professional relationships of those persons to Ho Enterprises itself. Disclosure of who prepared a business entity's interrogatory responses is not a constitutionally protected privacy matter. Contact information is on the lower-sensitivity end of the privacy spectrum, so total nonresponse is ordinarily not justified where narrower means can address any legitimate concern. (*Tien v. Superior Court* (2006) 139 Cal.App.4th 528, 532.) If only part of an interrogatory is objectionable, the remainder must be answered. (§ 2030.240(a).)

As to FROGs 3.1–3.7: These interrogatories principally seek business-entity identifying information. They seek basic organizational information about Ho Enterprises such as the LLC's name, articles of organization, principal place of business, and corporate status. This is not personal contact information and does not implicate privacy rights. It is typically public information maintained with the California Secretary of State. Even without deciding every possible public-record nuance, information already filed with public agencies and publicly accessible does not support a showing of a serious invasion of a legally protected constitutional privacy interest. (*Williams v. Superior Court of L. A. Cnty.* (2017) 3 Cal.5th 531.)

As to FROG 4.1: The privacy objection was addressed above and is overruled.

As to FROG 17.1: The interrogatory does implicate a cognizable privacy interest of natural persons in their personal contact information, but only if Defendant identifies whose privacy is at stake and makes the threshold showing required by the constitutional privacy doctrine. (*Williams v. Superior Court of L. A. Cnty.* (2017) 3 Cal.5th 531.) Defendant did not do so. Because names, addresses, and telephone numbers are lower-sensitivity information, total nonresponse is not the proper remedy even where some privacy interest exists; narrower measures such as a protective order, confidentiality designation, or a partial response would be the proper course. (*Tien v. Superior Court* (2006) 139 Cal.App.4th 528, 532.)

Accordingly, Defendant's privacy/privilege objections are overruled as to FROGs 1.1, 3.1–3.7, 4.1, and 17.1.

L. Plaintiff's Sanctions Request is GRANTED But At Lower Amount; Defendant's Sanctions Request is DENIED.

Code of Civil Procedure section 2030.300(d) mandates that the court impose a monetary sanction against any party, person, or attorney who unsuccessfully makes or opposes a motion to compel further interrogatory responses, unless the court finds that the losing party acted with substantial justification or that other circumstances make imposition of the sanction unjust. § 2030.300(c) *id.* § 2030.300(a). The shall impose language is mandatory, not discretionary, absent one of those two statutory safety valves. (*Deck v. Developers Inv. Co., Inc.* (2023) 89 Cal.App.5th 808.)

Sanctions under the discovery statutes follow the result on the motion unless the losing party acted with substantial justification or other circumstances make sanctions

unjust. (§ 2030.300(d).) Any amount awarded must reflect reasonable expenses actually and proportionately incurred.

Any sanctions request, whether made in a notice of motion or in opposition papers, must identify every person, party, and attorney against whom sanctions are sought and specify the type of sanction sought, and a monetary request must be supported by facts showing the amount sought. (Code Civ. Proc., § 2023.040.) The moving party requesting sanctions must provide notice of the request in accordance with Code of Civil Procedure section 2023.040.

Counsel's declaration may by itself support a fee award if it states the reasonable hourly rate, the hours worked, and the tasks performed; billing records and outside market evidence are not required. (*Concepcion v. Amscan Holdings, Inc.* (2014) 223 Cal.App.4th 1309, 1315.) A bare attack on the rate, without counter-evidence, does not compel denial, though the court retains discretion to reduce an excessive or inadequately supported rate. (*Id.*)

If sanctions are to be imposed personally on counsel, the record must support a conduct-based finding that counsel advised or directed the offending discovery conduct; personal sanctions are not automatic merely because counsel represented the losing party. (*Agnone v. Agnone* (2025) 111 Cal.App.5th 758, 763.)

Here, Plaintiff's section 2023.040 notice is sufficient because Plaintiff expressly sought monetary sanctions in the amount of \$5,260.00 against Defendant Ho Enterprises, LLC and its counsel of record, Ted Broomfield, Esq., jointly and severally. That identifies each target by name, specifies monetary sanctions as the type sought, and states the amount.

Moreover, here Defendant is the unsuccessful opposing party because the Motion has been granted on the merits. Ho Enterprises' objections lacked legal foundation and were not supported by request-specific facts. (C.C.P. § 2030.300(a).) Defendant's across-the-board refusal to provide any substantive response pending demurrer violated Code of Civil Procedure section 2017.010 and was contrary to the rule in *Williams v. Superior Court of L. A. Cnty.* (2017) 3 Cal.5th 531. (*Williams v. Superior Court of L. A. Cnty.* (Cal. 2017) 398 P.3d 69; § 2017.010.)

Defendant's demurrer-based-let's-delay-discovery theory is not substantial justification on this record. A pending demurrer does not itself authorize withholding interrogatory answers. (*Williams v. Superior Court of L. A. Cnty.* (Cal. 2017) 398 P.3d 69.) Nor does Defendant's estimate that responding would cost more than \$5,000 establish substantial justification here, because the showing is thin and conclusory; the record gives only a generalized cost assertion, not a particularized evidentiary explanation of burden by interrogatory or category of information. (*Deck v. Developers Inv. Co., Inc.* (2023) 89 Cal.App.5th 808.)

The record shows that Defendant served objection-only responses to Form Interrogatories 1.1, 3.1–3.7, 4.1, and 17.1, with no substantive answers to any

interrogatory. p:cb1b7bf4 Defendant's responses also expressly conditioned substantive responses on a future pleading event. p:od9c7a59 The overall posture was to withhold all substantive answers and defer to a future event that might never occur.

That said, in the broad exercise of its discretion, the Court also finds that Plaintiff's own conduct materially affects the *reasonable amount* of sanctions that the Court will award against Defendant here. As described in detail above, Plaintiff's meet-and-confer efforts in this case were quite poor. Plaintiff sent only two emails, seventeen and thirty-five minutes after receiving the responses. Neither email identified any specific interrogatory, objection, or defect; neither sought informal resolution without court intervention, the second threatened a motion and sanctions within a week, and Plaintiff never requested a telephone, video, or in-person conference. Under Code of Civil Procedure section 2016.040, a meet and confer must reflect a reasonable and good-faith attempt to resolve each issue informally. (§ 2016.040(a).) On this record, Plaintiff's effort was poor.

Additionally, Plaintiff never responded to defense counsel's July 24, 2026, email offering to stipulate in writing that defendants would serve substantive responses within thirty days after defendants file an answer, if the January 6, 2027 demurrer is overruled or leave to amend is granted and defendants elect to answer. Although that offer itself represented continued refusal to provide immediate responses—a legally improper position—it showed willingness to resolve the dispute without court intervention. Plaintiff's failure to engage reduced any claim of necessity for fee recovery.

The question is how Plaintiff's deficient meet-and-confer affects sanctions against Defendant. It does not retroactively create substantial justification for Defendant's objection-only responses, because Defendant still lacked a legally sufficient basis to withhold all substantive answers. (*Williams v. Superior Court of L. A. Cnty.* (Cal. 2017) 398 P.3d 69.) But it qualifies as an-other circumstance rendering a full sanctions award against Defendant inappropriate in the eyes of the Court, because Plaintiff moved quickly without engaging the issue-specific dialogue the statute and case law contemplate. (§ 2030.300(c).)

Regarding the specific amount of sanctions that Plaintiffs seeks and the specific amount that the Court will award under these circumstances, Plaintiff counsel's supporting declaration states Plaintiff's counsel has practiced since 1989, is an ABOTA member, charges \$650 per hour, spent five hours on research, writing, and exhibits, anticipates three more hours for opposition, reply, and hearing, and seeks a \$60 filing fee, for a total of \$5,260. The arithmetic is correct: eight hours at \$650 is \$5,200, plus \$60 equals \$5,260. To be sure, Counsel's Declaration may by itself support a fee award if it states the reasonable hourly rate, the hours worked, and the tasks performed; billing records and outside market evidence are not required. (*Concepcion v. Amscan Holdings, Inc.* (2014) 223 Cal.App.4th 1309, 1315.)

However, the Court need not accept \$650 per hour rate sought in full, or the number of 8 hours sought in full, on this record. Counsel offered experience credentials but no additional market support; three of the eight hours were only estimated when the

motion was filed; and Plaintiff's own deficient meet-and-confer reduced the amount of reasonable motion work that should be shifted. A bare attack on the rate, without counter-evidence, does not compel denial, though the Court retains broad discretion to reduce an excessive or inadequately supported rate. (*Concepcion v. Amscan Holdings, Inc.* (2014) 223 Cal.App.4th 1309, 1315.)

Furthermore, Plaintiff did not engage with Defendant's post-response and post-filing settlement proposals. Although those offers themselves represented continued refusal to provide immediate responses—a legally improper position—they showed willingness to resolve the dispute without court intervention. Plaintiff's failure to engage reduced any claim of necessity for fee recovery.

Balancing all these factors: (1) Defendant lost the motion on the merits and its position lacked substantial justification; (2) Plaintiff's deficient meet-and-confer and failure to engage in subsequent proposals; and (3) concerns about the fee calculation and amount claimed, the Court finds and awards reasonable sanctions to Plaintiff in the amount of **\$2,750.00**. This reflects the work the Plaintiff's counsel necessarily incurred to move against boilerplate responses that should not have been served, while accounting for Plaintiff's own procedural shortcomings that contributed to the need for court intervention.

Moreover, the Court rules that this total amount of sanctions awarded her of \$2,750.00 is awarded in favor of Plaintiff and against Defendant and his attorney Broomfield, jointly and severally. This record supports awarding sanctions against attorney Broomfield. The deficient responses themselves use counsel-driven legal objections, express a let's-delay-discovery-because-a-demurrer-was-filed theory; moreover, Defendant's Opposition and declaration show Broomfield defended and proposed the delayed-response approach as the operative discovery position. That suffices for a conduct-based finding that attorney Broomfield advised or directed the offending discovery conduct. (*Agnone v. Agnone* (2025) 111 Cal.App.5th 758, 763.) Joint and several sanctions against Ho Enterprises and attorney Broomfield are therefore supported because Defendant is the unsuccessful opposing side.

Accordingly, the Court **GRANTS** Plaintiff's Motion for monetary sanctions. Specifically, the Court **AWARDS** monetary sanctions to Plaintiff and against Defendant Ho Enterprises, LLC and its attorney Ted Broomfield, jointly and severally, in the amount in the amount of **\$2,750.00**, to be paid within thirty days of today to Plaintiff.

Regarding Defendant's competing sanctions request that Plaintiff Gerber J. Flores Marquez and his attorney, RJ Molligan, pay to Defendant Ho Enterprises LLC the reasonable attorney fees and costs of their Opposition in the amount of \$4,710.12 under Code of Civil Procedure sections 2030.300(d) and 2023.030, that request is unfounded. Defendant lost the Motion on the merits; its blanket objections to interrogatory responses were legally untenable and factually unsupported. The across-the-board refusal to provide responses pending demurrer lacks substantial justification. (*Williams v. Superior Court of L. A. Cnty.* (Cal. 2017) 398 P.3d 69.) While Plaintiff's meet-and-confer efforts were inadequate, that deficiency does not supply Defendant with substantial justification for its

own illegal position.

Accordingly, Defendant's request for sanctions against Plaintiff is **DENIED**.

III. Conclusion & Order

For the foregoing reasons, **IT IS HEREBY ORDERED:**

- Plaintiff's Amended Motion to Compel Defendant Ho Enterprises, LLC to Provide Further Responses to Plaintiff's Form Interrogatories, Set One, is **GRANTED**.
- Defendant Ho Enterprises, LLC shall serve verified, Code-Compliant substantive further responses to Form Interrogatories-General, Set One, interrogatories 1.1, 3.1-3.7, 4.1, and 17.1, within thirty (30) days of today.
- These further responses shall be without the blanket privacy, privilege, prematurity, vagueness, relevance, burden, harassment, settlement-pressure, and improper-shotgun objections asserted in Defendant's June 18, 2026 responses.
- Monetary sanctions are awarded to Plaintiff in the amount of \$2,750.00, jointly and severally against Defendant Ho Enterprises, LLC and its counsel Ted Broomfield, Esq., to be paid to Plaintiff within thirty days of today.
- Defendant's request to continue the hearing to February 22, 2027, is **DENIED**.
- Defendant's request for sanctions of \$4,710.12 is **DENIED** in its entirety.

SO ORDERED.

Date: August 19, 2026

Hon. Vincent I. Parrett
Superior Court of the State of California,
County of Santa Clara

Line 8

Case Name: *Angel Solorio Lomeli v. Angela Yuliana Solorio, et al.*

Case No.: 22CV404566

SUPERIOR COURT OF CALIFORNIA

COUNTY OF SANTA CLARA

Plaintiff Angel Solorio Lomeli (“Plaintiff”) moves under Code of Civil Procedure 473 for discretionary relief from the Order filed on August 14, 2025. Notice of Motion (the “Motion”) at 1:21-23.

The Motion came on for hearing on August 19, 2026, at 9:00 AM in Department 16. After reviewing all the papers and the record, and giving counsel for all parties the full and fair opportunity to be heard, the Court finds and rules as follows.

I. Background and Procedural History

This action arises from a property dispute between Plaintiff Angel Lomeli and his daughter, Defendant Angela Solorio, concerning real property located at 38760 Dinosaur Point Road in Hollister, California. Plaintiff asserts causes of action for Constructive Trust, Accounting, and Fraud and Deceit against his daughter for refusing to reconvey a property that Plaintiff granted to her pursuant to a deed recorded on October 25, 2019.

Plaintiff filed this action on September 19, 2022, and filed his operative Third Amended Complaint on December 5, 2024. On April 29, 2025, Defendant filed a Motion for Judgment on the Pleadings on the ground that the First Cause of Action for Imposition of Constructive Trust and Accounting failed as the Third Amended Complaint did not state any underlying cause of action which is a necessary predicate for such relief, and that the Second through Sixth Causes of Action for Fraud and Deceit were meritless as they were based on privileged testimony given by Solorio in a restraining order case against her father and Plaintiff did not allege that he relied on the testimony or was damaged thereby.

Plaintiff did not file any Opposition to the Motion for Judgment on the Pleadings, and Defendant filed a Notice of Non-Opposition to Motion for Judgment on the Pleadings on July 31, 2025. On Friday, August 8, 2025, at 9:00 a.m. in Department 16, Defendant’s Motion for Judgment on the Pleadings was heard before the Honorable Roberta Hayashi. Counsel of record for both Parties were present. The Court was informed that Plaintiff’s counsel had intended to appear on behalf of Plaintiff to argue why, under Code of Civil Procedure 473(b) either the motion for judgment on the pleadings should not be granted, or leave to amend should be allowed, but that Plaintiff’s counsel was temporarily precluded from appearing before the Court to make such argument. (Order 1:20-24) (filed: August 14, 2025).